

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

March 23, 2009

The Governing Body of the City of Cheyenne met on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne and Mr. Spiker. Absent: Mr. Valdez. The pledge of allegiance was recited.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Collins, and pursuant to support received by Mr. Pierson and Mr. Brown, agenda item #27(h) was removed from the Consent Agenda. Upon request by Dr. Rinne, and pursuant to support received by Ms. Ash and Mr. Pierson, agenda item #26(b) was removed from the Consent Agenda. It was noted that procedurally members did not need to officially provide a "second" to a request to remove consent agenda items. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Spiker. Motion carried. Voting "yes" – all members of the governing body present.

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON MARCH 9, 2009. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON MARCH 16, 2009. Motion (per Consent Agenda) carried.

Mr. Collins moved to approve payment of vouchers, seconded by Mr. Brown. City Treasurer Barb Dorr advised, pursuant to the new Innoprise software program, she had distributed a different voucher listing format that should be more user friendly, easier to read and more descriptive. Motion carried. Voting "yes" - all members of the governing body present.

Mayor Kaysen opened and conducted two public hearings for the purpose of receiving comments and input on the following:

A public hearing to determine whether compliance of annexation conditions required by Wyo. Stat. § 15-1-402 exists for the property described as being situated in Tracts 249, 250, 251, 252, Sunnyside Addition 6th Filing, except North 240 feet thereof and including portions of Charles Street and Arthur Street. Don Threewitt, Urban Planning Office, reviewed requirements and compliance of conditions contained in Wyo. Stat. §15-1-402, including specific information indicating compliance with Wyo. Stat. §15-1-402(a)(i) through (vi). Ms. Broyles declared a conflict of interest due to family ties with the applicant, and indicated she would not participate in any discussion and vacated Council Chambers. There being no further comments or input and purpose of the public hearing having been met, Mayor Kaysen closed the hearing. Following closure of the hearing, Ms. Broyles returned to Council Chambers.

A public hearing to determine whether compliance of annexation conditions required by Wyo. Stat. § 15-1-402 exists for the property described as public road and alley right of way situated as all of Campstool Road, Christensen Road, and Venture Drive as described in plats of record for Cheyenne Business Parkway, Third filing and Venture Drive Addition. Don Threewitt, Urban Planning Office, reviewed requirements and compliance of conditions contained in Wyo. Stat. §15-1-402, including specific information indicating compliance with Wyo. Stat. §15-1-402(a)(i) through (vi). There being no further comments or input and purpose of the public hearing having been met, Mayor Kaysen closed the hearing

“AN ORDINANCE CREATING SECTION 10.24.170, DISTRACTIVE DRIVING PROHIBITED; EXCEPTIONS, OF CHAPTER 10.24, RULES OF THE ROAD GENERALLY, OF TITLE 10, VEHICLES AND TRAFFIC, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING.” Mayor Kaysen advised it was his understanding that a proposed amendment(s) is affiliated with the ordinance and, upon no objection being raised by members of the governing body, stated the public may wish to reserve their comments until the amendment(s) is offered. In conjunction with the most recent Public Services Committee meeting involving review and recommendation on the proposed ordinance, Ms. Case requested the record reflect that pursuant to Robert’s Rules of Order the Committee chair does not have to relinquish duties of the chair during a Committee meeting to enable them to speak or vote on a Committee agenda item. Reporting for Public Services Committee, Dr. Rinne advised there was no recommendation on the item from Committee. Dr. Rinne moved to approve (third and final reading), seconded by Mr. Brown. Mr. Brown moved to amend by substitute ordinance, seconded by Dr. Rinne. It was advised the proposed substitute (date stamped 3/17/09) removes references to distracted driver, changes provisions of the ordinance to apply to cellular telephone use only, and provides that a violation would constitute a primary offense. Comments in support as well as in opposition were offered by the following individuals: John Fafoutakis, Eric Miller, Eric Russell, Marnie Sullivan, Landon Brown, Holly Palmer, Donn Edmunds, Helen Munoz, John Palmer, Tom Lee, Ed Melko, Michelle Schueler, Kathy Russell, Kevin Booker, Cindy Lang, Earl Janack, Marv Aragon, Jeffrey Smith and Patty Mahelona. Topics discussed included: Government interference, regulation and enforcement issues; preservation of individual rights; primary vs. secondary offense status; various types of driving distractions, including text messaging; alternative solutions; notification of law, if approved, for non-residents and tourism effect; hands-free cell phone usage; cell phone driver use involving city, police and fire employees, and ambulance operators; safe driving habits, driver attention and responsible driver issues; utilization of cell phones while driving as a privilege vs. a right; police officer discretion when determining violations; opposition to the ordinance generally; common sense driving practices; in-vehicle conversations as a form of driver distraction; statistical evidence justifying cell phone use while driving as a primary offense; use of cellular phones while driving for emergency, business, medical, employment, etc. purposes; current careless driving ordinance in place; amendment suggestions; drivers’ freedom of choice; support for the ordinance; written scientific research results by the Psychology Dept., University of Utah, on cell phone usage and risk factors/accidents (information submitted and on file with office of City Clerk), and the citation issuance process. Upon inquiry, Police Chief Bob Fecht provided his definition of the term “legally parked”, discussed officer discretionary authority, and advised the bond schedule for the offense would be set by the Municipal Court Judge and fines assessed could be a maximum of \$750.00 and/or 6 mos. in jail. Upon further inquiry, Chief Fecht explained the citizen arrest (witness based) process and proof of evidence. Discussion followed on the intent of the ordinance, which is to provide safe driving practices; primary vs. secondary offense status; use of hands free devices;

research on cell phone driver usage as a distraction; distractive driving legislation, and constitutional issues. Motion to amend carried. Voting “yes” - all members of the governing body present with the exception of Mr. Pierson voting “no”. For the record, Mr. Pierson read a letter from a citizen opposing the ordinance who was unable to be present at the meeting. Discussion on the main motion as amended included the following topics: Support/non-support for secondary offense vs. primary offense status for violations; hindering law enforcement investigative operations if the ordinance passes as a primary offense for violations; support for use of hands-free devices, and current careless driving laws. Main motion as amended by substitute failed (Clerk’s note: Approval of ordinances on final reading require a minimum of six affirmative votes). Voting “yes” – Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins and Mr. Spiker. Voting “no” – Ms. Case, Mr. Pierson, Dr. Rinne and Mayor Kaysen. Under other City business later in the meeting, comments were made concerning possible reconsideration of action on the ordinance at the next City Council meeting and amending the offense for violations from a primary to secondary status. Mr. Brown, sponsor of the ordinance, stated as the purpose of the ordinance was to provide for safety of the public, he would be against changing a violation from a primary to secondary offense.

Following a brief recess, Mayor Kaysen reconvened the meeting at 8:15 p.m.

“A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR SOUTH PARK ESTATES, 6TH FILING, A REPLAT OF A PORTION OF SOUTH PARK ESTATES, 2ND FILING, INTERIOR HEIGHTS, STANFIELD ADDITION BLOCKS 694 AND 744, STANFIELD 3RD ADDITION AND PORTIONS OF BLOCKS 713-714, 754-756, AND 775-777, ORIGINAL CITY, CHEYENNE, WYOMING (LOCATED NORTH OF I-80, BETWEEN WALTERSCHEID BOULEVARD AND PARTOYAN DRIVE).” Kevin Keller, agent and owner of the property, reviewed the voluntary remediation program involving the land, and clarified outstanding issues that have been resolved regarding survey corrections, utility and detention easements, and placement of the greenway (map handout submitted and on file with office of City Clerk). He discussed assessment of community development fees in the amount of \$21,890.00 vs. the greenway area to be provided and property valuation, and requested the City purchase the greenway easement for the cost of the community development fees. Reporting for Public Services Committee, Mr. Brown moved to adopt, seconded by Mr. Collins. Mr. Brown moved to amend to include revised staff recommendation #5 to require placement of the greenway easement to correspond with the most recent alignment proposed by Parks and Recreation Dept., seconded by Ms. Case. Comments followed in support of the proposed greenway realignment path, and proceeding with plat approval with the developer continuing negotiations with staff concerning whether the City will purchase the greenway path land for the cost of the community facility fees. Upon inquiry, City Attorney Dan White advised the governing body should act upon the final plat separately from any agreement entered into with the developer, if desired, for the greenway land. Upon inquiry, Jeff Wiggins, Parks and Recreation Dept., reviewed a similar past land transaction situation involving the Pointe Park. Martin Matsen, Development Director, advised there is no lot/block identified on the plat for the greenway path and indicated if it is desired to use community facility fees to buy back the area, a plat revision would be required as it would be treated as a lot/block split. It was noted there is no provision to waive community development fees in the subdivision regulations. Upon inquiry, Mr. Keller advised placement of the greenway easement on the plat is not a requirement at the time of plat approval and the City could negotiate for the easement at a later time, and indicated it was his intent to provide the greenway path easement in exchange for payment in the amount of the community facility fees. Discussion included housing development growth in the area, past concessions approved through the Board of Adjustment,

greenway path realignment, payment of community facility fees by the developer and possible purchase by the City of the greenway easement in the amount of the community facility fees prior to plat signatures being acquired. Motion to amend to include revised staff recommendation #5 carried. Voting "yes" – all members of the governing body present. Mr. Brown moved to amend to include staff recommendations #1 through 4, seconded by Dr. Rinne. Motion to amend carried. Voting "yes" – all members of the governing body present. Main motion as twice amended carried. Voting "yes" – all members of the governing body present. (#5108)

"A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR COLLEGE BUSINESS PARK, 2ND FILING, A REPLAT OF THE NORTH HALF OF TRACT 217, LESS THE WEST 27-FEET THEREOF; AND THE NORTH HALF OF TRACT 218, LESS THE EAST 17-FEET THEREOF, SUNNYSIDE ADDITION, 6TH FILING, CHEYENNE, WYOMING (LOCATED AT THE SOUTHEAST CORNER OF THE INTERSECTION OF N. COLLEGE DRIVE AND RAWLINS STREET)." Mr. Brown moved to adopt with staff recommendation #1, seconded by Mr. Collins. Motion carried. Voting "yes" – all members of the governing body present. (#5109)

"A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR THE PROPOSED ANNEXATION OF LOT 5, BLOCK 2, SEAVER'S SUBDIVISION, LARAMIE COUNTY, WYOMING, (LOCATED NORTH OF AND ADJACENT TO EVERTON DRIVE AND EAST OF AND ADJACENT TO HARMON AVENUE)." Mr. Spiker declared a conflict of interest and indicated he would not participate in discussion or vote on the item, and vacated Council Chambers. Mr. Brown moved to adopt, seconded by Mr. Pierson. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Spiker returned to Council Chambers. (#5110)

[CA] "A RESOLUTION APPROVING TEMPORARY WATER SERVICE, BY USER'S AGREEMENT, INTERSTATE HIGHWAY CONSTRUCTION" -- referred to Finance Committee (sponsors - Mr. Brown and Mr. Spiker).

[CA] "A RESOLUTION AUTHORIZING THE SUBMITTAL OF AN APPLICATION TO THE WYOMING STATE LOAN AND INVESTMENT BOARD FOR A \$850,000 PRINCIPAL FORGIVENESS LOAN FROM THE STATE REVOLVING FUND FOR THE CITY OF CHEYENNE FISCAL YEAR 2010 SEWER MAIN REHABILITATION PROJECT AND AUTHORIZING THE MAYOR, CITY CLERK AND THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO SIGN ALL LOAN DOCUMENTS" -- referred to Finance Committee (sponsor - Ms. Broyles).

[CA] "A RESOLUTION AUTHORIZING THE SUBMITTAL OF AN APPLICATION TO THE WYOMING STATE LOAN AND INVESTMENT BOARD FOR A \$1.1 MILLION PRINCIPAL FORGIVENESS LOAN FROM THE STATE REVOLVING FUND FOR THE CITY OF CHEYENNE CAREY AVENUE AND PIONEER AVENUE WATER AND SEWER MAIN REHABILITATION PROJECT AND AUTHORIZING THE MAYOR, CITY CLERK AND THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO SIGN ALL LOAN DOCUMENTS" -- referred to Finance Committee (sponsor - Ms. Broyles).

[CA] "A RESOLUTION AUTHORIZING THE SUBMITTAL OF AN APPLICATION TO THE WYOMING STATE LOAN AND INVESTMENT BOARD FOR A \$225,000 PRINCIPAL FORGIVENESS LOAN FROM THE STATE REVOLVING FUND FOR THE CITY OF CHEYENNE SEWER ROOT CONTROL AND CAMERA EQUIPMENT PROJECT AND AUTHORIZING THE MAYOR, CITY CLERK AND THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO SIGN ALL LOAN DOCUMENTS" -- referred to Finance Committee (sponsor - Ms. Broyles).

[CA] "A RESOLUTION AUTHORIZING THE SUBMITTAL OF AN APPLICATION TO THE WYOMING STATE LOAN AND INVESTMENT BOARD FOR A \$3.2 MILLION LOAN FROM THE STATE REVOLVING FUND FOR THE CITY OF CHEYENNE CROW CREEK ANOXIC BASIN PROJECT AND AUTHORIZING THE MAYOR, CITY CLERK AND THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO SIGN ALL LOAN DOCUMENTS" -- referred to Finance Committee (sponsor - Ms. Broyles).

[CA] "A RESOLUTION AUTHORIZING THE SUBMITTAL OF AN APPLICATION TO THE WYOMING STATE LOAN AND INVESTMENT BOARD FOR A \$650,000 PRINCIPAL FORGIVENESS LOAN FROM THE STATE REVOLVING FUND FOR THE CITY OF CHEYENNE FISCAL YEAR 2010 WATER MAIN REHABILITATION PROJECT AND AUTHORIZING THE MAYOR, CITY CLERK AND THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO SIGN ALL LOAN DOCUMENTS" -- referred to Finance Committee (sponsor - Ms. Broyles).

[CA] "A RESOLUTION AUTHORIZING THE SUBMITTAL OF AN APPLICATION TO THE WYOMING STATE LOAN AND INVESTMENT BOARD FOR A \$400,000 PRINCIPAL FORGIVENESS LOAN FROM THE STATE REVOLVING FUND FOR THE CITY OF CHEYENNE WYDOT WEST LINCOLNWAY WATER MAIN PROJECT AND AUTHORIZING THE MAYOR, CITY CLERK AND THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO SIGN ALL LOAN DOCUMENTS" -- referred to Finance Committee (sponsor - Ms. Broyles).

[CA] "A RESOLUTION AUTHORIZING THE SUBMITTAL OF AN APPLICATION TO THE WYOMING STATE LOAN AND INVESTMENT BOARD FOR A \$300,000 PRINCIPAL FORGIVENESS LOAN FROM THE STATE REVOLVING FUND FOR THE CITY OF CHEYENNE FISCAL YEAR 2008 PHASE II WELL REHABILITATIONS PROJECT AND AUTHORIZING THE MAYOR, CITY CLERK AND THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO SIGN ALL LOAN DOCUMENTS" -- referred to Finance Committee (sponsor - Ms. Broyles).

[CA] "A RESOLUTION AUTHORIZING THE SUBMITTAL OF AN APPLICATION TO THE WYOMING STATE LOAN AND INVESTMENT BOARD FOR A \$400,000 PRINCIPAL FORGIVENESS LOAN FROM THE STATE REVOLVING FUND FOR THE CITY OF CHEYENNE FISCAL YEAR 2010 WATER WELLS UPGRADE PROJECT AND AUTHORIZING THE MAYOR, CITY CLERK AND THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO SIGN ALL LOAN DOCUMENTS" -- referred to Finance Committee (sponsor - Ms. Broyles).

[CA] "A RESOLUTION AUTHORIZING THE SUBMITTAL OF AN APPLICATION TO THE WYOMING STATE LOAN AND INVESTMENT BOARD FOR THE PURPOSE OF RESTRUCTURING DRINKING WATER STATE REVOLVING FUND LOAN #079 FOR THE CITY OF CHEYENNE 30-INCH WATER TRANSMISSION MAIN PROJECT AND AUTHORIZING THE MAYOR, CITY CLERK AND THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO SIGN ALL LOAN DOCUMENTS" -- referred to Finance Committee (sponsor - Ms. Broyles).

[CA] "A RESOLUTION AUTHORIZING THE SUBMITTAL OF AN APPLICATION TO THE WYOMING STATE LOAN AND INVESTMENT BOARD FOR A \$7 MILLION LOAN FROM THE STATE REVOLVING FUND FOR THE CITY OF CHEYENNE ADMINISTRATION/ENGINEERING AND WATER RESOURCES FACILITY PROJECT AND AUTHORIZING THE MAYOR, CITY CLERK AND THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO SIGN ALL LOAN DOCUMENTS" -- referred to Finance Committee (sponsor - Ms. Broyles).

[CA] "A RESOLUTION AUTHORIZING SUBMISSION OF AN APPLICATION TO THE U.S. DEPARTMENT OF JUSTICE FOR THE COMMUNITY ORIENTED POLICING SERVICES HIRING RECOVERY PROGRAM TO BE USED TO HIRE THREE ADDITIONAL POLICE OFFICERS" -- referred to Finance Committee (sponsor - Mr. Pierson).

LEASES/CONTRACTS/LEGAL:

[CA] Professional Services Agreement between the City of Cheyenne and Doug Selby, Architect, for final design of the Cheyenne Depot Plaza Operations Facility (SLIB Funding). Motion (per Consent Agenda) carried (amount not to exceed \$132,000.00). (#5352)

[CA] Agreement between the City of Cheyenne and the Boys and Girls Club of Cheyenne, Inc., to lease the building located at 1700 Snyder Avenue, Cheyenne, Wyoming. Motion (per Consent Agenda) carried (\$1.00/month). (#5353)

[CA] Lease Agreement between the City of Cheyenne and L and L, Inc., for the use of the Kingham Prairie View Clubhouse and the provision of golf services at the Kingham Prairie View Golf Course -- referred to Finance Committee (due to postponement from Feb. 9, 2009).

[CA] Professional Services Agreement between the City of Cheyenne and L and L, Inc., for the provision of golf services at the Airport Golf Course -- referred to Finance Committee (due to postponement from Feb. 9, 2009).

CHANGE ORDERS/CONTRACT MODIFICATIONS:

[CA] Addendum to Contract No. 4710 for annual agreement between the City of Cheyenne, Information and Technology Div. and B.I.G. Wireless, LLC, for preventive maintenance, on-site emergency and equipment replacement for the wireless communications system (2007-2010 1% Capital Equipment Fund). Motion (per Consent Agenda) carried (amount not to exceed \$41,200.00). (#4710)

Contract Modification No. 1 to Contract No. 5052 between the City of Cheyenne, Sanitation Dept and Wyoming Salvage for removal of all appliances, metals, and steel from City Landfill. Reporting for Finance Committee, Mr. Spiker moved to approve, seconded by Ms. Broyles. It was advised the annual contract provides some revenue to the City, and removal of items will help prolong the life of the landfill. Upon inquiry, Vicki Nemecek, Interim Public Works Director, advised she was unaware of where the contractor disposes of the items that are removed. Motion carried. Voting “yes” – all members of the governing body present (#5052)

[CA] Contract Modification No. 1 to Contract No. 5260 between the City of Cheyenne and Tarco, Inc. for additional Greenway path to the Dry Creek-Sheridan Reach Flood Control Improvements Project (1% Specific Purpose Sales and Use Tax). Motion (per Consent Agenda) carried (amount not to exceed \$110,535.00). (#5260)

[CA] Contract Modification No. 1 to Contract No. 5296 between the City of Cheyenne and Naranjo Civil Constructors for partial retention release on Cheyenne Greenway- Safe Routes To Schools- Johnson/Goins Corridor Project. Motion (per Consent Agenda) carried (amount not to exceed \$36,392.58). (#5296)

[CA] Contract Modification No. 4 to Contract No. 5280 between the City of Cheyenne and Reiman Corporation for additional work for the Norris Viaduct Project. (2003-2006 1% Sales Tax; 1% Specific Purpose Sales and Use Tax) -- referred to Finance Committee.

CONSIDERATION OF BIDS:

[CA] Authorization to purchase reflective beads under Wyoming Department of Transportation Bid No. 08-0265LW (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$8,288.00).

[CA] Authorization to purchase traffic paint under Wyoming Department of Transportation Bid No. 08-0266LW (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$31,198.75).

[CA] Consideration of Bid No. M-13-09 for a contract between the City of Cheyenne and Knife River, Cheyenne, WY, for the FY 2009 Yellowstone Overlay Project (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$791,230.00). (#5354)

[CA] Consideration of Bid No. M-14-09 for a contract between the City of Cheyenne and Northstar Concrete Inc., Loveland, CO, for the FY 2009 Intersection Repair Project (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$246,124.00). (#5355)

[CA] Consideration of Bid No. M-15-09 for a contract between the City of Cheyenne and S&S Builders, LLC., Cheyenne, WY, for the FY 2009 Inlet Repair Project (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$107,063.95). (#5356)

[CA] Consideration of Bid No. M-16-09 for a contract between the City of Cheyenne and S&S Builders, LLC., Cheyenne, WY, for the Carey Avenue Extension Project (SLIB Funding). Motion (per Consent Agenda) carried (amount not to exceed \$539,196.25). (#5357)

[CA] Consideration of Bid No. M-19-09 for a contract between the City of Cheyenne and Knife River, Cheyenne, WY, for annual contract for furnishing aggregate for the City Street and Alley Dept. (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$23,400.00). (#5358)

Consideration of Bid No. M-20-09 for a contract between the City of Cheyenne and Knife River, Cheyenne, WY, for annual contract for Hot Plant Mix, Asphalt Tack Oil and Cold Mix for the City Street and Alley Dept. (2007-2010 1% Sales Tax). Chris Olsen, STC Construction, voiced concerns with the City doing its own overlay work and stated he believed it would be more cost-effective for the City to contract with a private company, which would include a warranty period. He discussed the proposed bid price for hot mix, costs involved for patching streets, street deterioration, and quality of work issues, and suggested the City conduct a study on in-house vs. private contractor costs. During his comments, Mr. Olsen circulated photos depicting various street conditions involving City overlay work. Joe Stephenson, Knife River, provided information on the cost of hot mix relative to the anticipated volume the City would utilize, and, upon inquiry, stated the price for liquid asphalt is not dropping as it has for liquid oil. He noted that the City has no cost escalation clause in its contract. Vicki Nemecek, Interim Public Works Director, reviewed City equipment used for overlays/patching and the types of work performed by the City crew, and explained timing issues involving quick response by the crews to address traffic and safety concerns. John Fafoutakis commented on the effect of oil prices, and the economic stimulus bill. Mr. Spiker moved to approve the bid submitted by Knife River in an amount not to exceed \$654,200.00, seconded by Ms. Broyles. Discussion included: Contracting with private businesses vs. City in-house work and researching of cost comparisons, efficiencies and work issues prior to the next annual bidding time frame; City's crew providing overlays/patching in a timely manner, volume of materials for projects, and ability of City crews to provide work on weekends as needed. Upon inquiry, Ms. Nemecek reviewed the volume of mix utilized relative to overlays, scheduled repairs, unanticipated immediate needs, and general maintenance work. Motion carried. Voting "yes" – all members of the governing body present. Mayor Kaysen stated a review of City operations vs. services by private providers would be reviewed for efficiency and cost analysis. (#5359)

[CA] Consideration of Bid #M-21-09 for a contract between the City of Cheyenne and S&S Builders, LLC, for the Dell Range Blvd., and Marble Ave. Signal Installations Project (2003-2006 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-22-09 for the purchase of one new flail mower with a 21 foot mowing width for the Street & Alley Dept. (2003-2006 1% Sales Tax) -- referred to Finance Committee.

[CA] Authorization to purchase two restroom facilities under a GSA Contract for Cahill Park and Sun Valley Park (SLIB Funding) -- referred to Finance Committee.

APPLICATIONS/LICENSES/PERMITS:

[CA] Transfer of ownership for a retail liquor license application filed with the City Clerk's Office for Outback Steakhouse of Florida, LLC d/b/a Outback Steakhouse, 1626 Fleischli Parkway, Cheyenne, WY (License currently held by Outback/Denver-I, L.P. d/b/a Outback Steakhouse, 1626 Fleischli Parkway, Cheyenne, WY). Motion (per Consent Agenda) carried.

Restaurant liquor license application filed with the City Clerk's Office for Jose Luis Gomez-Salcedo d/b/a Los 3 Caballos, 1907 E. Lincolnway, Cheyenne, WY. Alicia Marie Fuentes, speaking on behalf of the applicant, Jose Luis Gomez-Salcedo, clarified, pursuant to discussion at Finance Committee, that this is a new applicant and any prior business financial obligations involving taxes should be the responsibility of the previous licensee, and requested approval of the application. Mr. Spiker moved to approve, seconded by Mr. Collins. Brief comment in support of the application was made. Motion carried. Voting "yes" – all members of the governing body present.

OTHER CITY BUSINESS:

John Fafoutakis commented on freedoms enjoyed by Americans, recent newspaper article concerning City revenue shortfall projections and the need to prioritize expenditures, and expressed concern with certain items for the meeting being placed on the Consent Agenda, not open to discussion. Mayor Kaysen advised the Consent Agenda items referenced were items involving referrals to Finance Committee where public discussion will be available.

Clarification was made that any member of the public may contact a City Council member to request an item(s), pursuant to Consent Agenda rules, be removed from the Consent Agenda.

There being no further business to come before the governing body, the meeting was officially adjourned at 9:28 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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